



CHAPTER vi.

An Act to confirm a Provisional Order of the Minister of Health relating to the Taunton and District Joint Hospital District. A.D. 1933.

[29th March 1933.]

WHEREAS under the provisions of the Public Health Act 1875 the Minister of Health has made a provisional order which needs confirmation by Parliament : 38 & 39 Vict. c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The order of the Minister of Health which as amended is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Taunton and District Joint Hospital District) Act 1933. Short title.

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SCHEDULE.

TAUNTON AND DISTRICT JOINT HOSPITAL
DISTRICT.

*Taunton
and District
Order.*

*Provisional Order forming a united district under section 279
of the Public Health Act 1875.*

WHEREAS the councils of the borough and urban and rural districts named in column 2 of the first schedule to this order are local authorities for the purposes of the Public Health Act 1875 and have applied to the Minister of Health for a provisional order forming a united district for the purpose of the provision maintenance and management of hospitals for the reception of cases of infectious disease;

And whereas the councils of the borough of Taunton and the rural district of Taunton are joint owners of the Taunton Isolation Hospital which is administered by a joint committee in accordance with an agreement dated the twenty-fifth day of February nineteen hundred and seven made between those councils;

And whereas by an agreement dated the sixth day of May nineteen hundred and fifteen made between the said two councils of the first part and the county council of Somerset of the second part the parties of the first part let to the county council land at the isolation hospital on which the county council have erected and equipped a sanatorium for the treatment of cases of tuberculosis in the administrative county of Somerset and the sanatorium is administered by the councils of the borough of Taunton and the rural district of Taunton as part of the isolation hospital in accordance with and on the terms of the said agreement as varied by certain increases agreed to by the county council in the rate of payment for each patient sent by the county council to the sanatorium:

Now therefore the Minister of Health in pursuance of the powers conferred by section 279 of the Public Health Act 1875 and of all other powers in that behalf hereby orders as follows viz. :—

PART I.

PRELIMINARY.

Short title
and com-
mencement.

1. This order may be cited as the Taunton and District Joint Hospital Order 1932 and shall come into operation on the day on which this order is confirmed by Act of Parliament.

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2.—(1) In this order except as otherwise expressly provided or unless the context otherwise requires— A.D. 1933.

“Constituent council” means a council named in column 2 of the first schedule to this order; *Taunton and District Order.*

“Constituent district” means a borough or district mentioned in column 1 of the first schedule to this order or the part of the Bridgwater rural district mentioned in that column; *Interpretation.*

“Half-year” means the financial half-year commencing on the first day of April or the first day of October;

“The appointed day” means the first day of April nineteen hundred and thirty-three;

“The corporation” means the mayor aldermen and burgesses of the borough of Taunton acting by the council of the borough;

“The county” means the administrative county of Somerset and “the county council” means the council of that county;

“The hospitals” means the hospitals for the time being maintained by the joint board;

“The isolation hospital” means the isolation hospital within the borough of Taunton maintained jointly by the corporation and the rural council under the recited agreement of the twenty-fifth day of February nineteen hundred and seven and all land attached to that hospital inclusive of the reversionary interest of the corporation and the rural council in the land let to the county council by the recited agreement of the sixth day of May nineteen hundred and fifteen;

“The isolation hospital committee” means the joint committee appointed under the recited agreement of the twenty-fifth day of February nineteen hundred and seven for the administration of the isolation hospital;

“The joint board” means the Taunton and District Joint Hospital Board constituted by this order;

“The Minister” means the Minister of Health;

“The rural district” means the rural district of Taunton;

“The rural council” means the council of the rural district;

“The united district” means the Taunton and District Joint Hospital District formed by this order.

(2) In this order each of the expressions “powers” “duties” and “liabilities” has the meaning assigned to that expression by section 100 of the Local Government Act 1888.

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PART II.

*Taunton
and District
Order.*

FORMATION OF UNITED DISTRICT AND CONSTITUTION
OF JOINT BOARD.

Formation
of united
district.

3. On the appointed day the constituent districts shall be formed into a united district to be called the Taunton and District Joint Hospital District for the purposes of the provision maintenance and management for the use of the inhabitants of the constituent districts of hospitals for the reception of cases of infectious disease exclusive of smallpox :

Provided that until the first day of June nineteen hundred and thirty-three nothing in this order shall affect the powers of a constituent council to provide manage and maintain hospitals for the use of the inhabitants of their borough or district.

Constitution
and name of
joint board.

4. The joint board shall consist of nineteen members and shall be called the Taunton and District Joint Hospital Board.

Members of
joint board.

5. Subject to the provisions of part VI of this order the members of the joint board shall be elected by the constituent councils the number of members of the joint board to be elected by each constituent council shall be the number opposite the name of the constituent council in column 3 of the first schedule to this order and that number of members of the joint board shall be chosen by the constituent council from among the members of the council.

First
election of
members of
joint board.

6.—(1) At meetings to be held by the constituent councils on or as soon as may be after the appointed day each constituent council shall elect from among their members the number of members mentioned in column 3 of the first schedule to this order to represent the council on the joint board.

(2) The clerk of each of the constituent councils shall give or send to each member of the council not less than seven days previous notice in writing of the meeting and shall within seven days after the holding of the meeting notify in writing to the Minister the name address and occupation of each person elected by the constituent council as a member of the joint board.

(3) The persons elected in pursuance of this section as members of the joint board shall come into office upon their election by the constituent council.

Tenure of
office of
members.

7.—(1) The members of the joint board shall retire from office on the first day of May in the year nineteen hundred and thirty-six and in every third year thereafter and their places shall

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be filled by persons elected as members of the joint board by the constituent councils at meetings to be held before the day of retirement.

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(2) Subject to subsection (1) of this section a member of the joint board shall continue in office until he dies or resigns or ceases to be a member of the constituent council by whom he was elected or otherwise becomes disqualified :

Provided that a member of the joint board shall not for the purposes of this order be deemed to have ceased to be a member of a constituent council by retirement if not later than the day of his retirement as an alderman or a councillor he is re-elected an alderman or a councillor.

8.—(1) Any casual vacancy occurring among the members of the joint board shall be filled by the constituent council in whose representation the vacancy has occurred at a meeting to be held as soon as practicable after the occurrence of the vacancy.

Filling of
 vacancies.

(2) Any member of the joint board who for any cause ceases to hold office shall be re-eligible for election as a member of the joint board if at the time of re-election he is qualified to be so re-elected.

(3) The clerk of a constituent council shall forthwith notify in writing to the clerk of the joint board the name address and occupation of any person elected a member of the joint board by the constituent council whether to fill a casual vacancy or a vacancy arising on the expiration of the term of office of a member of the joint board.

9. Such of the provisions of section 46 of the Local Government Act 1894 and section 10 of the Local Government Act 1929 as relate to disqualification for being elected or being a member of the council of a district other than a borough and to absence from meetings of any such council shall with the necessary modifications extend to disqualification for being elected or being a member of the joint board and to absence from meetings of the joint board.

Disqualifica-
 tion for
 membership
 of joint
 board and
 absence from
 meetings.

10.—(1) The first meeting of the joint board shall be held at such time and at such place as may be fixed by the Minister and shall be convened by such person as the Minister may direct.

Meetings of
 joint board.

(2) Subsequent meetings of the joint board shall be held at such times and places as the joint board may appoint and at all meetings of the joint board six members shall constitute a quorum.

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(3) An extraordinary meeting shall be summoned by the clerk of the joint board when a requisition for that purpose is addressed to him by the chairman or any four members of the joint board.

(4) The requisition shall be in writing and no business other than that specified in the requisition shall be transacted at the extraordinary meeting.

(5) Three clear days at least before any meeting of the joint board or on such earlier day as the joint board may from time to time direct a summons to attend the meeting in which the business to be transacted at the meeting is specified shall be left at or sent by post to the usual place of residence or the usual place of business of each member of the joint board.

(6) Subject to the provisions of this order the proceedings at meetings of the joint board shall be conducted in accordance with standing orders made from time to time by the joint board.

Chairman
and vice-
chairman.

11.—(1) The joint board shall from time to time appoint one of their number to be chairman for one year at all meetings at which he is present :

Provided that a chairman so appointed shall unless he resigns his office of chairman or member of the joint board or ceases to be qualified or becomes disqualified as such a member continue in office until his successor is appointed.

(2) The joint board may from time to time appoint one of their number to be vice-chairman for one year and subject to any standing order made by the joint board anything authorised or required to be done by or before the chairman may be done by or before the vice-chairman.

Committees.

12.—(1) The joint board may appoint committees composed of their members for the exercise of any powers which in the opinion of the joint board can be properly exercised by committees but the acts of every such committee shall unless otherwise directed by the joint board be submitted to the joint board for approval :

Provided that a committee so appointed shall not be authorised to borrow money or to issue any precept for contributions or to enter into any contract.

(2) The provisions of part four of the first schedule to the Local Government Act 1894 so far as those provisions are applicable shall extend to any committee appointed in pursuance of this section.

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PART III.

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POWERS AND DUTIES OF THE JOINT BOARD.

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Application
of enact-
ments.

13.—(1) For the purposes of the provision maintenance and management of hospitals for the reception of cases of infectious disease exclusive of smallpox the joint board as from the first day of June nineteen hundred and thirty-three shall exercise and perform and be subject to all the powers duties and liabilities of an urban authority under the enactments mentioned in the second schedule to this order and those enactments shall extend to the joint board with such modifications as may be necessary to make them applicable to the purposes of this order to the joint board and to the united district :

Provided that—

- (a) until the first day of June nineteen hundred and thirty-three the foregoing provision shall not be read as imposing on the joint board a duty of receiving patients who are suffering from infectious disease ; and
- (b) section 258 of the Public Health Act 1875 as applied by this section shall be modified by the insertion in that section after the words “ local authority ” of the words “ or joint board ” and after the words “ such authority ” of the words “ or joint board.”

(2) Nothing in this order shall affect the powers of a constituent council under any enactment applied to the joint board by this section except so far as the powers duties or liabilities under the enactment are within the purposes for which the joint board are formed as described in subsection (1) of this section.

14.—(1) On the first day of June nineteen hundred and thirty-three the isolation hospital the ambulance at the isolation hospital and all furniture effects and stores at the isolation hospital which belong to the corporation and the rural council or either of those bodies or to the isolation hospital committee shall by virtue of this order be transferred to and vest in the joint board.

Transfer of
isolation
hospital and
property to
joint board.

(2) In consideration of the transfer of the isolation hospital and property made by this section there shall be paid by the joint board such sum of money as will represent the value to them as a going concern of the hospital and property so transferred regard being had to the condition of the buildings and property and inclusive of the value of the land let to the county council but disregarding the value of any buildings on that land.

(3) The sum payable by the joint board under subsection (2) of this section and the proportions in which that sum shall be paid to the corporation and the rural council respectively shall be determined by agreement made before the first day of June nineteen hundred and thirty-three between the joint board the

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corporation and the rural council or in default of agreement before that day shall be determined by an arbitrator appointed by the Minister and subject as aforesaid the provisions of the Arbitration Act 1889 as amended by any enactment shall apply to the arbitration.

(4) The payments to be made under this section by the joint board to the corporation and the rural council shall be made within three months after the date of any agreement made under subsection (3) of this section or within three months after the date of the award of any arbitrator appointed under that subsection as the case may require.

(5) Interest at the rate of $3\frac{1}{2}$ per cent. per annum on the sums payable to the corporation and the rural council under this section shall be paid to those bodies by the joint board from the first day of June nineteen hundred and thirty-three to the day on which the sum due is paid to the corporation or the rural council as the case may require.

(6) Any capital sum received under this section by the corporation or the rural council shall be applied by them with the sanction of the Minister in the repayment of debt or for any other purpose for which capital money may be applied.

(7) Nothing in this section shall affect or derogate from the rights or powers of the county council under the recited agreement dated the sixth day of May nineteen hundred and fifteen and that agreement subject to any variation of its provisions which immediately before the appointed day may be in force shall have effect as if the joint board were therein substituted for the corporation and the rural council without prejudice however to any power of the county council and the joint board by agreement to alter its provisions.

Reception of
patients by
agreement
with county
council.

15.—(1) The joint board may by agreement—

- (a) with the county council provide for the reception maintenance and treatment in a separate part of any of the hospitals of persons suffering from tuberculosis;
- (b) with any county council provide for the reception maintenance and treatment in any of the hospitals of persons in receipt of poor relief;

upon such terms and conditions as may be prescribed by the agreement and any such person may be admitted to a hospital in the manner and on the terms prescribed by the agreement.

(2) Nothing in this section shall affect any power of a constituent council with respect to persons suffering from tuberculosis or the rights and powers of the county council under the agreement referred to in subsection (7) of the preceding section of this order.

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16. Any patient admitted to any of the hospitals who is not a patient admitted under an agreement with a county council authorised by the preceding section of this order shall be admitted in one of the following ways and not otherwise except with the consent of the constituent councils viz. :—

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Admission of
 patients to
 hospitals.

- (1) By an order of the joint board or a constituent council;
- (2) By an order of a medical officer of health of a constituent council;
- (3) By an order of a medical officer appointed by the joint board;
- (4) By an order of a justice made under the provisions of section 124 of the Public Health Act 1875 with the consent required by that section.

17.—(1) Regulations of the Minister under section 130 or section 134 of the Public Health Act 1875 as extended by any other enactment may provide for the execution of those regulations by the joint board in relation to the whole or any part of the united district and if the joint board shall be charged with the carrying out of regulations under the said section 134 the Epidemic and other Diseases Prevention Act 1883 shall apply to the joint board as that Act applies to a local authority in England.

Regulations
 of Minister
 under
 38 & 39 Vict.
 c. 55, ss. 130,
 134.

(2) Save as provided in regulations of the Minister under any enactment mentioned in this section nothing in this order shall affect any powers or duties exerciseable by or imposed upon any constituent council by regulations of the Minister under any such enactment.

18. A copy of section 132 of the Public Health Act 1875 and of section 60 of the Public Health Acts Amendment Act 1907 (which relate to the recovery of the cost of maintaining a patient in a hospital) shall be exhibited in a conspicuous place at the principal entrance of every hospital provided by the joint board.

Notice of
 provisions as
 to recovery
 of cost of
 maintenance.

19.—(1) The joint board shall appoint a treasurer and a clerk and may appoint one or more medical officers who shall be registered medical practitioners and such other officers and servants as they think requisite.

Appoint-
 ment and
 remunera-
 tion of
 officers &c.

(2) The joint board may pay their treasurer clerk medical officers and other officers or servants such reasonable remuneration as they deem expedient and every such treasurer clerk medical officer and other officer and servant shall hold office upon the terms on which he was appointed by the joint board.

PART IV.

FINANCIAL PROVISIONS.

20.—(1) All the expenses incurred by the joint board shall be defrayed out of a common fund to which all the receipts of

Common
 fund of
 joint board.

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A.D. 1933. the joint board (including the sums payable to them in respect of the cost of maintenance in the hospitals of patients) shall be carried.

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(2) So far as the common fund is not provided by the receipts referred to in subsection (1) of this section precepts shall be issued by the joint board in respect of each half-year to each constituent council requiring them to pay a contribution to the common fund of the joint board.

(3) The contribution of each of the constituent councils to the common fund of the joint board shall be based on the proportion which the rateable value of the constituent district bears to the aggregate of the rateable values of all the constituent districts.

(4) For the purposes of this section the rateable value of a constituent district shall be the rateable value appearing in the valuation list in force on the first day of April or the first day of October preceding the issue of the precept.

(5) Any sum payable by the Bridgwater rural district council under a precept of the joint board shall be defrayed by means of the levy by that council of an additional item of the general rate on those parishes of the Bridgwater rural district which form part of the united district.

Calculation
 and payment
 of charges
 for patients.

21.—(1) The charges to be made by the joint board to the constituent councils during any half-year in respect of patients sent to the hospitals by the constituent councils and maintained there during that half-year shall be a charge per day calculated to the nearest penny and derived from the average daily cost of the upkeep of the hospitals during the half-year divided by the average number of patients in the hospitals on each day of the half-year excluding however expenditure upon patients suffering from tuberculosis who have been received in a hospital under any agreement with the county council and the number of patients so received.

(2) Within six weeks after the close of each half year the joint board shall calculate on the basis mentioned in subsection (1) of this section the average daily amount of the expenditure charged in their accounts for that half-year and the average number of patients in the hospitals on each day of the half-year :

Provided that establishment expenses of the hospital including—

- (a) loan charges and the expenses of the purchase or hire of land ;
- (b) the provision alteration or repair of buildings or the provision or repair of furniture and fittings ; and
- (c) the salaries remuneration and rations of officers and servants ;

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shall be excluded from the calculation of the average daily amount of the expenditure.

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(3) Within eight weeks after the close of each half-year the clerk of the joint board shall transmit to the clerk of each constituent council an account showing in respect of each patient maintained during that half-year in any of the hospitals who was admitted from the district of that council but who was not received in the hospital under an agreement with the county council—

- (a) the name and address of the patient ;
- (b) the number of days in the half-year during which the patient was an inmate of the hospital ;
- (c) the charge per day in respect of the patient calculated in accordance with the foregoing provisions of this section ;
- (d) the charge for the half-year being the charge per day multiplied by the number of days in the half-year during which the patient was an inmate of the hospital ;
- (e) a deduction in respect of any sum recovered by the joint board from or repaid to the joint board by or in respect of the patient ; and
- (f) the net sum claimed by the joint board from the constituent council as due for the maintenance of the patient.

(4) For the purposes of this section the day on which a patient entered the hospital and the day on which he was discharged therefrom shall both be included as days on which the patient was an inmate of the hospital.

(5) Where during any half-year any sum is recovered or received by the joint board otherwise than from a constituent council in respect of a patient who was discharged from a hospital before the commencement of that half-year the sum so recovered or received shall be deducted by the joint board from the amount shown by the account for that half-year as due to them from the constituent council of the district from which the patient was admitted to the hospital.

22. The amount shown to be due from a constituent council by the account prepared by the clerk of the joint board under the preceding section of this order shall be paid by that constituent council and shall be included as a separate item of any precept which the joint board may issue to the constituent council under section 284 of the Public Health Act 1875 and in case of default shall be recovered in the manner authorised by that section.

Inclusion in precepts of charges for patients.

23. All orders for payments from the common fund of the joint board shall be signed by at least two members of the joint board and shall be countersigned by the clerk of the joint board

Orders for payments.

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or in his absence or inability by such other officer as the joint board for the purpose may authorise.

Inspection
of accounts.

24. The accounts of the joint board shall at all reasonable times be open to inspection and transcription free of charge by any member of a constituent council or by any officer of a constituent council authorised by that council for that purpose.

Abstract of
accounts and
auditor's
report.

25. A copy of the abstract of the accounts of the joint board and of any report to the joint board made by the district auditor shall be sent by the joint board to each constituent council as soon as may be after the completion of the audit.

PART V.

OFFICERS.

Meaning in
this part of
"officer."

26. In this part of this order unless the context otherwise requires the expression "officer" means any officer or servant holding an office or employment on the passing of the Act for the confirmation of this order other than an officer or servant who holds a temporary appointment which expires before the first day of June nineteen hundred and thirty-three.

Transfer of
officers.

27.—(1) The town clerk of Taunton and the clerk of the rural council who by virtue of the agreement of nineteen hundred and seven for the administration of the isolation hospital act as clerks and advisers of the isolation hospital committee shall on the first day of June nineteen hundred and thirty-three as respects the aforesaid offices of clerks and advisers be transferred to and become officers of the joint board.

(2) Any person not mentioned in subsection (1) of this section who is an officer within the meaning of this part of this order and holds an office under or is employed by the isolation hospital committee shall on the first day of June nineteen hundred and thirty-three as respects that office or employment be transferred to and become an officer of the joint board.

(3) Every transferred officer shall hold his office by the same tenure and upon the same terms and conditions as if this order had not been made and while performing similar duties shall in respect of a transferred office receive not less salary or remuneration than the salary or remuneration to which he would have been entitled if this order had not been made.

(4) The joint board may abolish the office or determine the appointment of any officer whose office they may consider unnecessary.

Compensa-
tion to
officers.

28.—(1) Section 309 of the Public Health Act 1875 which enables the Minister by order to award compensation to officers in certain cases shall extend to any officer within the meaning

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of this part of this order who by virtue of this order or anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by determination of his appointment or by diminution or loss of fees salary or emoluments as if the joint board were a local authority within the meaning of the Public Health Act 1875.

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(2) For the purposes of this section any officer whose office is abolished or whose appointment is determined or whose fees salary or emoluments are reduced within five years after the appointed day because his services are not required or his duties are diminished and not on the ground of misconduct shall be deemed unless the contrary is shown to have suffered a direct pecuniary loss in consequence of this order.

(3) Any compensation awarded by the Minister under this section shall be paid by such persons and out of such fund as the Minister may direct.

(4) No officer shall be entitled to receive both compensation under this order for pecuniary loss and a superannuation allowance in respect of the same period of service and the same pecuniary loss.

PART VI.

SUPPLEMENTARY.

29.—(1) If on the appointed day by an order of the Minister made under section 46 of the Local Government Act 1929—

Amendment
 of this order
 consequent
 on order
 under
 19 & 20
 Geo. 5. c. 17.
 s. 46.

(a) the urban district of Wiveliscombe is abolished references to the urban district of Wiveliscombe the council of that urban district and the number of members of the joint board to be elected by that council shall as from the appointed day be omitted from the first schedule to this order and the number of members of the joint board who represent the rural district of Wellington shall as from the appointed day be increased from one to two;

(b) any constituent district mentioned in the first schedule to this order is altered in area but not abolished any reference in that schedule to that constituent district shall as from the appointed day be read as a reference to the constituent district as so altered;

(c) any parish mentioned in the first schedule to this order is altered in area or abolished any reference in that schedule to that parish shall be read as a reference to that parish as so altered or if the parish is abolished shall be omitted from the first schedule to this order.

(2) Any person who has been elected before the appointed day to represent on the joint board the urban district of Wiveliscombe shall be deemed to have been elected to represent the

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(3) Any person who has been elected before the appointed day to represent on the joint board a constituent district mentioned in the first schedule to this order which on the appointed day is altered in area but not abolished shall be deemed to have been elected to represent that constituent district as so altered.

Power of
 Minister to
 adapt this
 order on
 alterations of
 boundary &c.

30.—(1) If after the appointed day—

- (a) any new district is formed which comprises the whole or any part of a constituent district or the boundaries of a constituent district are otherwise altered;
- (b) a constituent district is created or included in a municipal borough; or
- (c) any alteration is made in the law affecting the united district or the joint board or a constituent district or constituent council in matters touching their relation to the united district or the joint board;

the Minister may on the application of the joint board or any constituent council by order provide for the adaptation of this order to the altered circumstances.

(2) If on an application made by the joint board or any constituent council it shall appear to the Minister that the rateable value of any constituent district has so increased or decreased as to render the representation of the council of that district on the joint board inadequate or excessive as the case may be the Minister may by order provide for the election of additional members or the retirement of redundant members of the joint board as the case may require.

(3) Every order under this section shall be published by the joint board in such manner as the Minister may direct.

Existing
 instruments.

31. All contracts agreements deeds bonds and other instruments entered into or made by the isolation hospital committee and subsisting before the transfer of the isolation hospital to the joint board shall be of as full force and effect against or in favour of the joint board and may be enforced as fully and effectually as if the joint board had been a party thereto.

Income and
 liabilities.

32.—(1) All sums in the nature of revenue which but for this order would be payable to the isolation hospital committee on or after the first day of June nineteen hundred and thirty-three shall be paid to the joint board and all liabilities of the isolation hospital committee which may become due on or after that day shall be defrayed by the joint board.

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(2) Nothing in this order shall transfer to the joint board any income which may be payable to the isolation hospital committee before the first day of June nineteen hundred and thirty-three or any liability which may have become due from the isolation hospital committee before that day. A.D. 1933.
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33. Where the day on which anything is required by this order to be done is a Sunday Good Friday Christmas Day or a bank holiday that thing shall be done on the next following day not being one of the days before mentioned. Provision
for Sundays
and public
holidays.

34. Subject to the provisions of this order if at any time any difference shall arise between the joint board on the one hand and any of the constituent councils on the other hand or between any of the constituent councils respecting any matter within the scope of this order the difference shall be referred to arbitration in the manner provided by the Public Health Act 1875 and the provisions of that Act relating to arbitrations shall apply with the necessary modifications as if the joint board or a constituent council (as the case may be) were a party within the meaning of those provisions. Settlement
of differ-
ences.

35.—(1) The Minister may direct any inquiries to be held by his inspectors which he may deem necessary for the purposes of this order and those inspectors shall for the purposes of any inquiry have all such powers as they have for the purposes of inquiries directed by the Minister under the Public Health Act 1875. Inquiries and
expenses.

(2) Where the Minister causes any such inquiry to be held the costs incurred by the Minister in relation to that inquiry (including such reasonable sum not exceeding five guineas a day as the Minister may determine for the services of any inspector or officer of the Minister engaged in the inquiry) shall according as the Minister may direct be paid by the joint board or any constituent council and the Minister may certify the amount of the costs so incurred and any sum so certified and directed by the Minister to be so paid shall be a debt due to the Crown.

[Ch. vi.] Ministry of Health [23 GEO. 5.]
*Provisional Order Confirmation (Taunton and District
Joint Hospital District) Act, 1933.*

A.D. 1933.

*Taunton
and District
Order.*

SCHEDULES.

FIRST SCHEDULE.

CONSTITUENT DISTRICTS CONSTITUENT COUNCILS AND NUMBER
OF MEMBERS OF THE JOINT BOARD.

Name of borough or district. 1.	Name of council. 2.	Number of members. 3.
The borough of Taunton - -	The council of the borough of Taunton.	7
The urban district of Wellington -	The urban district council of Wellington.	2
The urban district of Wivelis- combe.	The urban district council of Wiveliscombe.	1
The rural district of Taunton -	The rural district council of Taunton.	4
The rural district of Wellington -	The rural district council of Wellington.	1
The rural district of Dulverton -	The rural district council of Dulverton.	1
Part of the rural district of Bridgwater consisting of the parishes of Aisholt Bridgwater Without Broomfield Canning- ton Charlinch Chedzoy Chilton Trinity Durleigh Enmore Fid- dington Goathurst Lyng Mid- dlezoy Nether Stowey North Petherton Othery Otterhamp- ton Over Stowey Saint Michael Church Spaxton Stockland Bristol Thurloxton Wembdon and Weston Zoyland.	The rural district council of Bridgwater.	3
	Total - - -	19

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Joint Hospital District) Act, 1933.*

SECOND SCHEDULE.

A.D. 1933.

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Order.*

ENACTMENTS APPLIED TO THE JOINT BOARD.

Session and chapter.	Short title.	Enactments applied.	Subject-matter.
38 & 39 Vict. c. 55.	The Public Health Act 1875.	Section 122 - . - Section 123 as amended by section 63 of the Public Health Act 1925. Section 131 - . - Section 132 as amended by section 60 of the Public Health Acts Amendment Act 1907. Sections 173 and 174 except subsection (3) of section 174. Sections 175 to 177 - Sections 179 to 181 - Sections 192 to 197 - Section 205 - . - Sections 245 and 247 (as amended by the District Auditors Act 1879 Section 58 of the Local Government Act 1894 section 61 of the Finance Act 1921 and the Audit (Local Authorities) Act 1927). Section 249 - . - Section 250 - . - Sections 251 253 254 258 to 262 and 265. Sections 266 and 267 - Section 269 (as amended by the Summary Jurisdiction Act 1884). Section 298 - . -	Disinfection of articles. Ambulances. Provision of hospitals or temporary places for reception of the sick. Recovery of cost of maintenance in hospitals. Contracts. Purchase and disposal of lands. Arbitration. Officers and offices. Attendance of inspectors at meetings. Accounts and audit. Taxation of bills of costs. Accounts of officers. Recovery of penalties and legal proceedings. Notices. Appeals to quarter-sessions. Costs of provisional orders.

[Ch. vi.] *Ministry of Health* [23 GEO. 5.]
*Provisional Order Confirmation (Taunton and District
Joint Hospital District) Act, 1933.*

A.D. 1933.

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Order.*

Session and chapter.	Short title.	Enactments applied.	Subject-matter.
38 & 39 Vict. c. 55— <i>contd.</i>	The Public Health Act 1875— <i>contd.</i>	Section 306 (as amended by section 48 of the Public Health Acts Amendment Act 1890). Section 307 - - - Section 308 - - - Section 309 - - -	Penalty for obstructing execution of Act and for destruction of notices &c. Penalty for damaging works &c. Compensation for damage by local authority. Compensation to officers.
47 & 48 Vict. c. 74.	The Public Health (Officers) Act 1884.	The whole Act - - -	Restriction on recovery of penalties under section 193 of the Public Health Act 1875.
48 & 49 Vict. c. 53.	The Public Health (Members and Officers) Act 1885.	Sections 1 and 2 - - -	Amendment of section 193 of the Public Health Act 1875.

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